

Ford's data centre playbook leaves municipalities wary of government's heavy hand | Canada's National Obs

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Municipalities across Ontario have spent months debating the best approach to AI data centres. So, when Premier Ford addressed councillors and mayors gathered in Ottawa on Monday, the province's newly-announced Data Centre Playbook was top of mind. But the playbook includes little detailed information and no indication of whether the province's new framework will complement the data regulations that municipalities have been working towards or supersede them entirely. Ford has said that data centres should go to a "willing host," and suggested that municipalities could pass a "resolution" signalling whether they'd want a data centre. In practice, the playbook Ford released could contradict those statements. Bill 40, the Protect Ontario by Securing Affordable Energy for Generations Act, empowers the province to make the final decision on which projects get approved. Municipalities such as Oakville and Mississauga, both of which recently enacted a one-year freeze on new data centres, could see their planning rules overridden by the province. One way Ford could do that is with a Ministerial Zoning Order, said Coun. Martin Reid. Those orders have been a common maneuver for Ford, often overriding municipal land-use decisions. Alternatively, the province could side with a developer at the Ontario Land Tribunal, where developers are likely to appeal municipalities' moratoriums. That could already be coming in one case: Developer Prologis has said they would consider appealing Mississauga's moratorium, which halts their current application for a 40 MW data centre. "The government's approach to data centres at this moment is loosely focused, overly pro-data centre, and leaves little [room] for our municipalities to have a say in what goes into their communities," said Burlington Coun. Lisa Kearns, who moved a motion for the city to review data centre rules on July 21. Kearns' motion led to Burlington's longest council meeting of the current term, with nearly four hours of delegations and questions from the public about data centres. If the province wants data centres to "earn public trust" — part of the playbook's third pillar — there needs to be extensive community engagement and clear regulations for the facilities, Kearns said. In addition to public consultation, municipal leaders want data centres to be regulated to the benefit of their host communities. For example, Burlington Mayor Marianne Meed Ward thinks that Ford's playbook should include a requirement that data centres have to sign community benefit agreements. Some of the tax revenue created by data centres could fund schools and infrastructure, or the developers could commit to building a new community centre or sports arena. Communities also want to be assured that incoming data centres won't create adverse impacts for the environment, including water use, contamination, noise, emissions and heat generation. Right now, it's up

to the developers whether to build environmentally friendly data centres (for example, by diverting waste heat to heat nearby homes) and the province's playbook doesn't address any specific regulations to curb the developments' environmental impact, though Ford said in his speech on Monday that data centres will need to meet "strict environmental standards." Even if environmental standards are created, Kroetsch isn't confident the province will make companies abide by them. "[Ford] has demonstrated time and time again, that when they have strict environmental standards in place, they let major polluters go above and beyond those limits," he said. As it stands, municipalities are cautiously optimistic about the playbook. A provincial data centre framework could create a safe baseline to ensure economic development doesn't come at a cost to Ontario's communities. With a strong regulatory framework, communities facing data centre proposals won't need to go off of "promises from developers," Reid said. But the signs aren't pointing in that direction. The proposal is "extremely vague," and it's only available for public input for 30 days; a limited time frame for councils to submit meaningful feedback, Kroetsch told CNO.